

1 ENGROSSED SENATE
2 BILL NO. 1423

By: Daniels of the Senate

3 and

4 Lepak of the House

5
6 An Act relating to the Oklahoma Hospital Advisory
7 Council; amending 63 O.S. 2021, Sections 1-270, 1-
8 705, and 1-707, which relate to public health;
9 eliminating the Oklahoma Hospital Advisory Council;
10 conforming language; updating statutory language; and
11 providing an effective date.

12 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

13 SECTION 1. AMENDATORY 63 O.S. 2021, Section 1-270, is
14 amended to read as follows:

15 Section 1-270. A. As funding permits, the State Department of
16 Health shall foster and coordinate implementation of a plan for a
17 statewide coordinated system of care for stroke, which shall include
18 special focus and attention on evidence-based treatment for stroke.
19 Such system shall include, but shall not be limited to:

20 1. Recommendations from ~~the Oklahoma Hospital Advisory Council~~
21 and medical experts in stroke care;

22 2. Collaboration and partnerships with relevant professional
23 organizations and associations advocating for evidence-based
24 treatment for stroke patients;

1 3. Measures to raise awareness and promote preventative medical
2 care regarding risk factors for stroke;

3 4. Utilization of state-recognized stroke hospital
4 classifications; and

5 5. Protocols for evidence-based pre-hospital and interfacility
6 assessment, treatment, and transport of stroke patients by emergency
7 medical responders and agencies licensed pursuant to the Oklahoma
8 Emergency Response Systems Development Act.

9 B. The State ~~Board~~ Commissioner of Health may promulgate rules
10 as necessary to implement the provisions of this section.

11 SECTION 2. AMENDATORY 63 O.S. 2021, Section 1-705, is
12 amended to read as follows:

13 Section 1-705. A. ~~The State Board of Health, upon~~
14 ~~recommendation of the~~ State Commissioner of Health ~~and with the~~
15 ~~advice of the Oklahoma Hospital Advisory Council hereinafter~~
16 ~~provided for,~~ shall promulgate rules and standards for the
17 construction and operation of hospitals, for which licenses are
18 required by the terms of this article, to provide for the proper
19 care of patients. The promulgation of rules shall be subject to and
20 be governed by the provisions of the Administrative Procedures Act.

21 B. Every hospital shall be periodically inspected by an
22 authorized representative of the Commissioner. Reports of such
23 inspections shall be on forms prescribed by the Commissioner, who
24 shall, after receipt of such reports, take such action as deemed

1 necessary by the ~~Commission~~ Commissioner to have corrected any
2 deficiencies or violations of the rules and standards of the ~~Board~~
3 Commissioner shown in such reports.

4 C. Hospitals licensed pursuant to the provisions of this
5 article shall not be exempt from being inspected or licensed under
6 laws relating to hotels, restaurants, lodging houses, ~~boarding~~
7 ~~houses~~ boardinghouses and places of refreshment.

8 D. 1. Every hospital that offers or provides inpatient
9 psychiatric or chemical dependency treatment services to persons
10 eighteen (18) years of age or younger shall offer, provide or
11 otherwise make available community-based programs and services and
12 may make such programs and services available directly, through
13 contract, or other appropriate means as determined by the State
14 Department of Health.

15 2. For the purposes of this subsection, the term "community-
16 based services" shall have the same meaning as such term is defined
17 by Section 1-1-105 of Title 10A of the Oklahoma Statutes.

18 SECTION 3. AMENDATORY 63 O.S. 2021, Section 1-707, is
19 amended to read as follows:

20 Section 1-707. A. The State Commissioner of Health, ~~with the~~
21 ~~advice of the Oklahoma Hospital Advisory Council,~~ shall promulgate
22 rules and standards as the Commissioner deems to be in the public
23 interest for hospitals, on the following:

1 1. Construction plans and location, including fees not to
2 exceed Two Thousand Dollars (\$2,000.00) for submission or
3 resubmission of architectural and building plans, and procedures to
4 ensure the timely review of such plans by the State Department of
5 Health. The assessed fee shall be used solely for the purposes of
6 processing approval of construction plans and location by the State
7 Department of Health;

8 2. Physical plant and facilities;

9 3. Fire protection and safety;

10 4. Food service;

11 5. Reports and records;

12 6. Staffing and personal service;

13 7. Surgical facilities and equipment;

14 8. Maternity facilities and equipment;

15 9. Control of communicable disease;

16 10. Sanitation;

17 11. Laboratory services;

18 12. Nursing facilities and equipment; and

19 13. Other items as may be deemed necessary to carry out the
20 purposes of this article.

21 B. 1. The State Commissioner of Health, with the advice of the
22 ~~Oklahoma Hospital Advisory Council and the~~ State Board of Pharmacy,
23 shall promulgate rules and standards as the Commissioner deems to be
24

1 in the public interest with respect to the storage and dispensing of
2 drugs and medications for hospital patients.

3 2. The State Board of Pharmacy shall be empowered to inspect
4 drug facilities in licensed hospitals and shall report violations of
5 applicable statutes and rules to the State Department of Health for
6 action and reply.

7 ~~C. 1. The Commissioner shall appoint an Oklahoma Hospital~~
8 ~~Advisory Council to advise the Department regarding hospital~~
9 ~~operations and to recommend actions to improve patient care.~~

10 ~~2. The Advisory Council shall have the duty and authority to:~~

11 ~~a. review and approve in its advisory capacity rules and~~
12 ~~standards for hospital licensure,~~

13 ~~b. evaluate, review and make recommendations regarding~~
14 ~~Department licensure activities; provided however, the~~
15 ~~Advisory Council shall not make recommendations~~
16 ~~regarding scope of practice for any health care~~
17 ~~providers or practitioners regulated pursuant to Title~~
18 ~~59 of the Oklahoma Statutes, and~~

19 ~~c. recommend and approve:~~

20 ~~(1) quality indicators and data submission~~
21 ~~requirements for hospitals, and~~

22 ~~(2) the indicators and data to be used by the~~
23 ~~Department to monitor compliance with licensure~~
24 ~~requirements.~~

1 ~~D. 1. The Advisory Council shall be composed of nine (9)~~
2 ~~members appointed by the Commissioner. The membership of the~~
3 ~~Advisory Council shall be as follows:~~

4 ~~a. two members shall be hospital administrators of~~
5 ~~licensed hospitals,~~

6 ~~b. two members shall be licensed physicians or~~
7 ~~practitioners who have current privileges to provide~~
8 ~~services in hospitals,~~

9 ~~c. two members shall be hospital employees, and~~

10 ~~d. three members shall be citizens representing the~~
11 ~~public who:~~

12 ~~(1) are not hospital employees,~~

13 ~~(2) do not hold hospital staff appointments, and~~

14 ~~(3) are not members of hospital governing boards.~~

15 ~~2. a. Advisory Council members shall be appointed for three-~~
16 ~~year terms except the initial terms after November 1,~~
17 ~~1999, of one hospital administrator, one licensed~~
18 ~~physician or practitioner, one hospital employee, and~~
19 ~~one public member shall be one (1) year. The initial~~
20 ~~terms after the effective date of this act of one~~
21 ~~hospital administrator, one licensed physician or~~
22 ~~practitioner, one hospital employee, and one public~~
23 ~~member shall be two (2) years. The initial terms of~~
24 ~~all other members shall be three (3) years. After~~

~~initial appointments to the Council, members shall be
appointed to three-year terms.~~

~~b. Members of the Advisory Council may be removed by the
Commissioner for cause.~~

~~E. The Advisory Council shall meet on a quarterly basis and shall annually elect from among its members a chairperson. Members of the Council shall serve without compensation but shall be reimbursed by the Department for travel expenses related to their service as authorized by the State Travel Reimbursement Act.~~

SECTION 4. This act shall become effective November 1, 2026.

Passed the Senate the 9th day of March, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the ____ day of _____,
2026.

Presiding Officer of the House
of Representatives